

**HIGH COURT OF JAMMU AND KASHMIR
AT SRINAGAR**

SWP No. 643/2018

Farooq Ahmad Hajam.

...Petitioner(s)

Through: None.

vs

State of JK & Ors.

...Respondent(s)

Through:

CORAM:

Hon'ble Mr Justice Ali Mohammad Magrey, Judge.

ORDER

21.08.2020

01. The grievance projected in this petition relates to the subject(s) covered by Section 14 of the Central Administrative Tribunals Act, 1985 (CAT Act). The jurisdiction to hear this petition as a Court of first instance, therefore, lies with the Central Administrative Tribunal (CAT) constituted under the provisions of the CAT Act.

02. Accordingly, in terms of Section 29 of the CAT Act, this case is transferred for further proceedings to the CAT, the Court of first instance, having its place of sitting at Srinagar notified vide Notification no. G.S.R. 317(E) dated 28.05.2020, issued by the Central Government under Section 5(7) of the CAT Act. However, since there is only one Bench of the CAT established so far which is presently holding its sitting at Jammu, the Registrar Judicial is directed to transmit the record of the petition to the CAT presently holding sittings at Jammu, retaining a soft copy thereof.

03. The parties are directed to appear before the Registrar, Central Administrative Tribunal (CAT), Jammu Bench on 31.12.2020 for further proceedings.

04. *Disposed* of as above.

**(Ali Mohammad Magrey)
Judge.**

SRINAGAR:

21.08.2020

"Hamid"